

Raj Kumar Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 July 2014 · Writ-C No. 35134 of 2014 · **Writ disposed; petitioner to apply under Clause 6.14; coercive recovery stayed two months.**

HEADNOTE

Mandamus to pay agricultural electricity arrears of Rs 1,28,070 in instalments was not granted on the merits. Clause 6.14 of the U.P. Electricity Supply Code, 2005 itself allows instalments for consumers in financial distress (no surcharge waiver; grant only by Executive Engineer and above; first instalment not less than 40%). The petitioner was left to apply under Clause 6.14 within three weeks; the competent authority was directed to decide sympathetically by a speaking order within a further three weeks; coercive recovery was stayed for two months or until that decision, whichever was earlier.

FACTUAL SUMMARY

The petitioner held agricultural power connection no. 75113411 for a boring in his field. Owing to financial distress he could not pay the regular electricity bills issued by the respondent corporation. Recovery proceedings were initiated for outstanding dues of Rs 1,28,070. He sought a mandamus directing the authorities to accept those dues in easy instalments within a stipulated period and to forbear coercive action.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for financial distress

HOLDING

Clause 6.14 itself provides for payment of outstanding dues in instalments in deserving cases of financial distress. A consumer seeking that facility must apply to the competent authority (not below Executive Engineer). The authority is to decide the application by a speaking and reasonable order, taking a sympathetic view; coercive recovery may be withheld pending that decision. The court does not itself grant instalments on a writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO CLAUSE 6.14 INSTALMENTS ON THE MERITS

Left to the competent authority on the petitioner's application, to be decided sympathetically by a speaking order. ¶ 1